

where, when deciding not to resume proceedings, the Legal Division has properly identified and exhausted its scope for discretion and weighed up the situation in the light of all the relevant factors, without being influenced by anything irrelevant and without making any logical mistakes in its assessment of the facts, it is not open to the Legal Board to exercise its own discretion in the Legal Division's place.

4. New submissions on appeal – case law on the RPBA 2020

4.1. Introduction

4.1.1 Legal basis

a) Legal bases in the EPC

Under Art. 114(1) EPC, the EPO is obliged to examine the facts of its own motion, and in doing so, it is not restricted to the facts, evidence and arguments provided by the parties and the relief sought. According to Art. 114(2) EPC, however, the EPO may disregard facts or evidence which are not submitted in due time by the parties concerned (on the application of these principles in opposition proceedings, see also chapter IV.C.4. "Late submission of documents, lines of attack and arguments ").

Earlier case law already pointed out that the wording of Art. 114(1) EPC 1973 (Art. 114 EPC left unchanged by the EPC 2000 revision) does not mean that the boards of appeal have to conduct rehearings of the first-instance proceedings, with unfettered right, and indeed obligation, to look at all fresh matter regardless of how late it was submitted. Such an interpretation of Art. 114(1) EPC 1973 takes it out of the context not only of the remainder of the article, namely Art. 114(2) EPC 1973, but also of Art. 111(1) EPC 1973 (the EPC 2000 revision entailed only minor editorial changes to the English and French versions). When Art. 114(1) EPC 1973 is construed in its proper context, it becomes evident that there is a clear limit on the scope of any new matter that may be introduced on appeal by the parties or by the board itself, because cases on appeal must be and remain identical or closely similar to those on which the first-instance decisions were rendered (T 97/90, OJ 1993, 719, cited in T 951/91, OJ 1995, 202; see also T 26/88, OJ 1991, 30, where it was stated that the essential function of the appeal procedure was to determine whether the decision issued by a department of first instance was correct on its merits; T 229/90; T 611/90, OJ 1993, 50; T 339/06 and T 931/06).

Facts and evidence submitted for the first time in appeal proceedings may be disregarded by the boards of appeal as a matter of discretion under Art. 114(2) EPC 1973, which limits the boards' inquisitorial duties under Art. 114(1) EPC 1973 (T 326/87, OJ 1992, 522).

In T 482/18 the board dealt with whether restricting the admission of amendments as provided for in the Rules of Procedure of the Boards of Appeal (RPBA) that entered into force on 1 January 2020 was essentially compatible with the principle of ex officio examination and concluded that it was. On this point, it cited G 9/91 and G 10/91 (OJ 1993, 408 and 420), according to which the main purpose of inter partes appeal proceedings was to give the losing party an opportunity to challenge the opposition

division's decision on its merits and it was justified to apply Art. 114(1) EPC 1973 in a generally more restrictive manner on appeal than in opposition proceedings.

On the review of discretionary decisions taken by departments of first instance on new submissions in proceedings before them, see chapter V.A.3.4.5.

It is settled case law of the boards of appeal that **new requests** containing amended claims may exceptionally be admitted in appeal proceedings. According to R. 100(1) EPC, the provisions in R. 137(3) EPC, relating to examination, and in R. 80 EPC, relating to opposition, apply by analogy in appeal proceedings. Under R. 137(3) EPC, further amendments of a European patent application may not be made without the consent of the examining division (for details, see chapter IV.B.2.4 "Amendments under Rule 137(3) EPC"), while R. 80 EPC provides, in essence, that the description, claims and drawings may be amended if this is occasioned by a ground for opposition under Art. 100 EPC (for details, see chapter IV.C.5.1.2 "Amendments occasioned by a ground for opposition – Rule 80 EPC").

In R 6/19 the Enlarged Board of Appeal held that Art. 123(1) EPC was the basis for the board's discretion whether or not to admit claim requests in appeal proceedings (see also J 14/19 and T 966/17, the latter referring to Art. 123(1), first sentence, EPC, read together with R. 79(1) and 81(3) EPC).

b) Legal bases in the Rules of Procedure of the Boards of Appeal

The Rules of Procedure of the Boards of Appeal (RPBA) lay down precise provisions on later amendments to a party's case which, in particular, explicitly leave it to the board's discretion whether to admit them (regardless of whether they relate to facts, objections, evidence or requests). The RPBA were thoroughly revised in 2019, with the new version entering into force on 1 January 2020 (this version is hereinafter referred to as "RPBA 2020", published in OJ 2019, A63 and republished in OJ 2021, A35 with Art. 15a RPBA 2020; on the RPBA generally, see also chapter V.A.1.2; on the transitional provisions, see chapters V.A.4.3.2, V.A.4.4.2 and V.A.4.5.2).

Under Art. 12(2) and (4) RPBA 2020, the boards have discretion not to admit an **amendment to the case made by a party at first instance** or, more precisely, not to admit submissions on appeal which are not directed to requests, facts, objections, arguments or evidence on which the decision under appeal was based and for which the party has not demonstrated that they were admissibly raised and maintained at first instance. In addition, Art. 12(6) RPBA 2020, in a similar way as Art. 12(4) RPBA 2007 before it, explicitly refers to the boards' discretion not to admit requests, facts, objections or evidence which were not admitted in the first-instance proceedings (first sentence) or which should have been submitted or were not maintained in those proceedings (second sentence). Such submissions are not to be admitted unless the decision not to admit them at first instance suffered from an error in the use of discretion or the circumstances of the appeal case justify admitting them. For more detail on these provisions and how they have been interpreted in the case law, see chapter V.A.4.3. "First level of the convergent

approach – submissions in the grounds of appeal and the reply – Article 12(3) to (6) RPBA 2020".

Under Art. 13(1) RPBA 2020, the boards have discretion whether to admit amendments to a party's appeal case **after it has filed its statement of grounds of appeal or reply**. The criteria for exercising this discretion are similar to those applied under Art. 13(1) RPBA 2007 and codify the case law on that earlier provision (see e.g. T 634/16, T 700/15). The case law on Art. 13(1) RPBA 2020 is reported in chapter V.A.4.4. "Second level of the convergent approach – submissions made after filing of grounds of appeal or reply – Article 13(1) RPBA 2020".

Art. 13(2) RPBA 2020 provides that amendments made to a party's case at an advanced stage of the proceedings (that is, after expiry of a **period specified** by the board in a **communication under R. 100(2) EPC** or after **notification of a summons to oral proceedings**) are generally to be disregarded unless there are exceptional circumstances which have been justified with cogent reasons by the party concerned. The case law on Art. 13(2) RPBA 2020 is reported in chapter V.A.4.5. "Third level of the convergence approach – submissions filed after notification of summons or after expiry of period specified in R. 100(2) EPC communication – Article 13(2) RPBA 2020".

The provisions mentioned above implement the "convergent approach", whereby the possibilities for parties to amend their case become increasingly limited as the appeal proceedings progress (see e.g. T 1370/15, T 2778/17 and the explanatory remarks in the preparatory document CA/3/19, section V.B.a), point 48, published in the supplementary publication 2, OJ 2020). Where their various individual requirements are met, the provisions are **cumulatively** applicable. See chapter V.A.4.1.2 "Primary object of appeal proceedings and the "convergent approach" to amendments made to party's case" below.

Parties must identify and justify any amendments to their case and state why they were not submitted at an earlier stage in the proceedings (Art. 12(4) and 13(1) RPBA 2020).

4.1.2 Primary object of appeal proceedings and the "convergent approach" to amendments made to party's case

In line with the principle set out in decision G 9/91 (OJ 1993, 408, point 18 of the Reasons; see also e.g. T 2194/14, T 1102/15, T 343/16 and T 632/16), the RPBA 2020 highlight in their new Art. 12(2) RPBA 2020 that the primary object of the appeal proceedings is to review the decision under appeal in a judicial manner. Numerous decisions have referred to this principle in their reasoning when applying the provisions of the RPBA 2020 governing new submissions on appeal (see e.g. J 3/20, T 2214/15, T 786/16, T 256/17, T 2778/17, T 1422/17, T 1456/20).

One of the consequences of the boards' function being above all to review the appealed decision is that, as the appeal proceedings progress, the possibilities for parties to amend their case become increasingly limited (see e.g. T 1370/15, T 2778/17 and CA/3/19, section V.B.c), point 48, supplementary publication 2, OJ 2020). This "convergent approach" (referred to in numerous decisions interpreting the relevant provisions of

the RPBA 2020; see. e.g. T. 2214/15, T. 2227/15, T. 2279/16, T. 2778/17) consists of three levels, now regulated in new Art. 12(4) and 13(1) and (2) RPBA 2020. Which of these provisions apply depends on the point in the proceedings at which a party changes its case:

- at the outset of the appeal proceedings – first level of convergent approach – Art. 12(4) RPBA 2020;
- after the party has filed its grounds of appeal or its reply – second level of convergent approach – Art. 13(1) RPBA 2020;
- after the period set in a communication under R. 100(2) EPC has expired or a summons to oral proceedings has been notified – third level of convergent approach – Art. 13(2) RPBA 2020.

These provisions are, where their various individual requirements are met, **cumulatively applicable**. The requirements of the first level of the convergent approach – i.e. those set out in Art. 12(4) to (6) RPBA 2020 – apply throughout the appeal proceedings, i.e. also at the stages of the appeal proceedings which are governed by Art. 13(1) and (2) RPBA 2020 (see CA/3/19, section VI, explanatory remarks on Art. 12(6) RPBA 2020, last paragraph; the table setting out the amendments to the RPBA and the explanatory remarks have also been published in Supplementary publication 2, OJ 2020). By way of express reference to Art. 12(4) to (6) RPBA 2020, it is clarified in Art. 13(1) RPBA 2020 that the criteria set out in those provisions apply mutatis mutandis to any submissions made after a party has filed its grounds of appeal or its reply. T. 2486/16 and T. 2429/17 are examples of decisions in which these criteria have been applied at the third stage of the proceedings. All decisions pertaining to the requirements of the first level of the convergent approach set out in Art. 12(4) to (6) RPBA 2020 are reported in chapter V.A.4.3 "First level of the convergent approach – submissions in the grounds of appeal and the reply – Article 12(3) to (6) RPBA 2020", irrespective of the stage of the proceedings at which the submissions concerned were filed.

As regards Art. 13(1) RPBA 2020, numerous decisions have confirmed that the criteria of this provision may also be applied at the third level of the convergent approach (see e.g. T. 2227/15 and T. 584/17, which gives a detailed explanation based on the travaux préparatoires in document CA/3/19, section VI, explanatory remarks on Article 13(2) RPBA 2020, fourth paragraph). For more details on the application of the criteria of Art. 13(1) RPBA 2020 at the third level, see chapter V.A.4.5.9 "Discretion under Article 13(2) RPBA 2020 – principles".

The provisions of Art. 12(4) and 13(1) and (2) RPBA 2020 only apply to cases in which a party has **amended** its case (i.e. its case presented at first instance as far as Art. 12(4) RPBA 2020 is concerned or its appeal case as far as Art. 13(1) and (2) RPBA 2020 are concerned). With regard to Art. 13(2) RPBA 2020, the board in T. 247/20 explained that the **test** to be applied was a **two-fold** one. The first question was whether the submission objected to was an amendment to a party's appeal case. If that question was answered in the negative, then the board had no discretion not to admit the

submission. If, however, that question was answered in the affirmative, then the board needed to decide whether there were exceptional circumstances, justified by cogent reasons, why the submission was to be taken into account (two-step procedure confirmed in e.g. J 14/19, T 2988/18 and T 528/19). Decisions on this preliminary issue of whether new submissions are an amendment are summarised in chapter V.A.4.2 "Amendment to a party's case".

As noted by the board in T 2227/15, the **transitional provisions** in Art. 25 RPBA 2020 systematically reflect the structure relating to the admissibility of parties' submissions during appeal proceedings, which, according to the RPBA 2020, is characterised by a convergent approach, divided into three different stages. Art. 25(2) and (3) RPBA 2020 is clearly directed to and limited to two narrow exceptions. Only those provisions which specifically govern the initial stage and the ultimate stage are excluded from an immediate application of the RPBA 2020, leaving the intermediate stage, i.e. the second level of the convergent approach (Art. 13(1) RPBA 2020), to be governed by the general rule set out in Art. 25(1) RPBA 2020. Thus, where the summons to oral proceedings or a R. 100(2) EPC communication was notified before 1 January 2020, Art. 13(1) RPBA 2020 applies simultaneously with Art. 13(1) and (3) RPBA 2007 (see e.g. T 634/16, T 32/16, T 2227/15). See also chapters V.A.4.3.2, V.A.4.4.2 and V.A.4.5.2 for more details on the application of the transitional provisions. Decisions in which, based on the relevant transitional provisions, the boards applied Art. 13(1) RPBA 2020 (and, if appropriate, Art. 13(1) and (3) RPBA 2007) to submissions not filed until after notification of the summons to oral proceedings are – even though this means they were filed at the final stage in the proceedings – reported in chapter V.A.4.4. "Second level of the convergent approach –submissions made after filing of grounds of appeal or reply – Article 13(1) RPBA 2020".

4.2. Amendment to a party's case

Art. 12(4) and 13(1) and (2) RPBA 2020 apply where a party amends its case (or parts of it).

In J 14/19 the Legal Board explained that the point of reference for assessing whether a case had been amended within the meaning of Art. 13(1) or (2) RPBA 2020 was the statement of grounds of appeal or the reply, whereas the point of reference for assessing whether any part of the appeal case had to be regarded as an amendment within the meaning of Art. 12(4) RPBA 2020 was the decision under appeal.

Furthermore, under Art. 12(4) RPBA 2020, submissions not dealt with in the first-instance decision are not to be regarded as an amendment if the party demonstrates on appeal that it admissibly raised them and also maintained them until the department of first instance took its decision; see also CA/3/19 (supplementary publication 2, OJ 2020), explanatory remarks on Art. 12(4) RPBA 2020, third paragraph.